

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into between AlphaTech Solutions Pvt. Ltd. and Orion Data Systems for the purpose of evaluating a potential business collaboration involving software development, analytics, and confidential business operations.

1. Definition of Confidential Information

Confidential Information includes all technical, financial, operational, customer, employee, marketing, software, product, source code, business strategy, and proprietary information disclosed by the Disclosing Party in written, oral, electronic, or visual form.

2. Confidentiality Obligations

The Receiving Party agrees to maintain strict confidentiality of all disclosed information and shall not disclose, copy, distribute, or use such information except for the intended evaluation purpose. Employees and contractors accessing such information must be bound by equivalent confidentiality obligations.

3. Term and Survival

This Agreement shall remain effective indefinitely unless terminated in writing by the Disclosing Party. Obligations relating to confidentiality shall survive termination of this Agreement without limitation.

4. Return and Destruction of Information

Upon written request, the Receiving Party shall promptly return or destroy all confidential materials, including copies, notes, summaries, and derivative materials, and certify such destruction in writing.

5. Intellectual Property

All intellectual property rights related to Confidential Information remain solely with the Disclosing Party. No license, ownership, or transfer of rights is granted under this Agreement.

6. Liability and Indemnification

The Receiving Party shall be subject to unlimited liability for any direct, indirect, incidental, consequential, or reputational damages arising from breach of confidentiality obligations under this Agreement.

7. Injunctive Relief

The Disclosing Party shall be entitled to injunctive relief, equitable remedies, and any other legal remedies available in the event of unauthorized disclosure or misuse of Confidential Information.

8. Exclusions

Confidential Information does not include information that is publicly available, independently developed without use of confidential materials, or lawfully obtained from third parties without breach of obligation.

9. Governing Law and Jurisdiction

This Agreement shall be governed by and interpreted in accordance with the laws of India. Any disputes arising under this Agreement shall be subject to the exclusive jurisdiction of courts located in Mumbai, Maharashtra.

10. Entire Agreement

This Agreement constitutes the complete understanding between the parties regarding confidentiality obligations and supersedes all prior discussions, negotiations, or agreements related to the subject matter.

Appendix A – Business Context

Appendix A – Example Business Scenario AlphaTech Solutions Pvt. Ltd. intends to share internal analytics dashboards, pricing strategies, source code snippets, client onboarding procedures, and cloud architecture diagrams with Orion Data Systems for evaluation purposes. The Receiving Party acknowledges that unauthorized disclosure may cause significant commercial and reputational harm to the Disclosing Party. The Receiving Party further agrees that any suspected breach must be reported immediately and may result in legal proceedings, financial penalties, and contract termination.